

(I.) **Where no object expressed, the Court will direct the application of the estate to some charity.**—Where a person makes a valid gift, whether by deed or will, and expresses a general intention of charity, but either particularises no objects (*d*), or such as do not exhaust the proceeds (*e*), the Court will not suffer the property in the first case, or the surplus in the second, to result to the settlor or his representative, but will take upon itself to execute the general intention, by declaring the particular purposes to which the fund shall be applied.

(II.) **Where the rents increase, the surplus will be applied to like charitable purposes.**—Where a person settles lands, or the rents and profits of lands to purposes which at the time exhaust the whole proceeds, but, in consequence of an increase in the value of the estate, an excess of income subsequently arises, the Court will order the surplus, instead of resulting, to be applied in the same or a similar manner with the original amount (*f*).

Taylor v. Haygarth, 14 Sim. 8; *Powell v. Merrett*, 1 Sm. & G. 381; *Cradock v. Owen*, 2 Sm. & G. 241; see *ante*, p. 61.

(*d*) *Attorney-General v. Herrick*, Amb. 712.

(*e*) *Attorney-General v. Haberdashers' Company*, 4 B. C. C. 102; S. C. 2 Ves. jun. 1; *Attorney-General v. Minshull*, 4 Ves. 11; *Attorney-General v. Arnold*, Shower's P. C. 22; and see *Attorney-General v. Sparks*, Amb. 201; and Lord Eldon's observations, in *Attorney-General v. Mayor of Bristol*, 2 J. & W. 319. But where a gift is to a particular charity which exists at the date of the will, but is dissolved in the testator's lifetime, it is as much a lapse as a gift to a man who has ceased to exist, *Fisk v. Attorney-General*, 4 L. R. Eq. 521. And where a fund was given to trustees for education in the United States, and the United States repudiated the gift, the fund was not applied to other charitable objects, but fell into the residue, *New v. Bonaker*, 4 L. R. Eq. 655.

(*f*) *Inhabitant of Eltham v. Warreyn*, Duke 67; *Sutton Colefield case*,

second resolution, Id. 68; *Hynshaw v. Morpeth Corporation*, Id. 69; *Thetford School case*, 8 Rep. 130 *b*; *Attorney-General v. Johnson*, Amb. 190; *Kennington Hastings case*, Duke 71; *Attorney-General v. Mayor of Coventry*, 2 Vern. 397, reversed in D. P. 7 B. P. C. 236; (see the foregoing cases commented upon by Lord Eldon in *Attorney-General v. Mayor of Bristol*, 2 J. & W. 316;) *Attorney-General v. Coopers' Company*, 19 Ves. 189, *per* Lord Eldon; *Attorney-General v. Wilson*, 3 M. & K. 362; *Lad v. London City*, Mos. 99; *Attorney-General v. Coopers' Company*, 3 Beav. 29; *Attorney-General v. Master of Catherine Hall, Cambridge*, Jac. 381; *Attorney-General v. Beverley*, 6 H. L. Cas. 310; *Attorney-General v. Drapers' Company*, 2 Beav. 508; 4 Beav. 67; *Attorney-General v. Christ's Hospital*, Ib. 73; *Attorney-General v. Merchants' Venturers' Society*, 5 Beav. 338; *Attorney-General v. Corporation of Southmolton*, 14 Beav. 357; *Attorney-General v. Caius College*, 2 Keen, 150; *Attorney-General v. Wax Chan-*